
Case	Title / Nature of Case
2:00 PM Line 1 19-CIV-06457	HENG ZHANG VS BRENDON FARRELL

HENG ZHANG
BRENDON FARRELL

CHARLES J. WISCH
JAMES J. HUANG

Plaintiff's Motion to Enforce Turnover Order and Compel Disgorgement of Funds by Complex Appellate Litigation Group

TENTATIVE RULING:

Plaintiff's Motion to Enforce Turnover Order and Compel Disgorgement of Funds by Complex Appellate Litigation Group ("CALG") is DENIED.

On January 15, 2026, the parties attended an Order for Examination in Dept. 30 before the Civil Commissioner. The Minute Order for that hearing reflects:

Judgment Debtor was called before the Court which gave the following order: For any real or personal property or other assets of Judgment Debtor in his custody, possession or control or held by a third party for Judgment Debtor's benefit shall not be concealed, wasted, disbursed, sold, transferred, impaired, or otherwise encumbered by Judgment Debtor or at his direction until a further Order...
Minute Order, 1/15/2026.

The parties that attended said Order for Examination included the Judgment Creditor Heng Zhang and her attorney Charles Wisch, and the Judgment Debtor Brendon Farrell and his attorney James Huang. Minute Order, 1/15/2026. CALG was not present.

Plaintiff alleges that \$74,418.00 was held in the CALG law firm's attorney trust account on January 15, 2026 (MPA, pg. 4, line 3; Wisz Decl., ¶, Exh. 6-7), which Plaintiff argues was subject to the above Minute Order. Plaintiff argues that said law firm returned said funds back to the payors Katherine Chen and Honglin Chen (non-parties), purportedly in violation of the Minute Order. Wisz. Decl. ¶8, Exh. 6-7.

Subsequently an Application for Turnover Order was then held on February 6, 2026, with a formal Order entered on February 17, 2026. Attorney Wisch and Attorney Huang were present on behalf of the parties (Minute Order, 2/6/2026), but CALG was again not present. Relevantly, that Order provided in pertinent part and in relation to this law firm and others that:

On or before February 27, 2026, Farrell is directed to request... that they release to him any funds held for his benefit in their trust accounts, after deduction of any current charges up through the date of this hearing.
Order, 2/18/2026.

CALG has specially appeared to oppose this motion, and its Opposition makes four primary arguments:

1. CALG objects to this motion on the basis of lack of jurisdiction. CALG is not a party to this action, nor an attorney of record for any party. Plaintiff argues that CALG is subject to this motion by its past filing of a declaration, which Plaintiff equates to a general appearance. MPA, pg. 3, lines 11-19. However, this is contradicted by CALG's "Specially Appearing" opposition filed 7/1/2026. Nevertheless, CALG can still be subject to jurisdiction as a "third person" if it hold property of the judgment debtor and on this basis the objection is overruled. Code of Civil Procedure ("CCP") § 708.205, et seq.
2. CALG objects to this motion as the February 18, 2026 Order Granting in Part and Denying in Part Plaintiff's Application for Turnover Order in Aid of Execution (aka the "Order, 2/18/2026"), was never served on CALG. Feuer Decl., ¶¶ 4, 10. This objection is sustained, which is fatal to this motion. The Court also notes that said order was directed to the Defendant / Judgment Debtor (not CALG), requiring that "Farell is directed to request of those three law firms that they release to him any funds held for his benefit in their trust accounts, after deduction of any current charges up through the date of this hearing." Order, 2/18/2026.
3. CALG objects to this motion as CALG is not holding the funds that Plaintiff seeks by this motion to be disgorged. Feuer Decl., ¶¶ 7-8. This objection is sustained, which is fatal to this motion.
4. Finally, CALG objects to this motion as the Defendant had no right to possession of the relevant funds that were formerly in the CALG client-trust account. The Court agrees. CALG cites to an advisory opinion from the Cal. State Bar, that "unearned funds held in trust belong to the third-party, not the client." Opposition, pg. 12, citing to State Bar, Formal. Opn. No. 2013-187, pgs. 2-3. Said opinion was provided by Plaintiff's counsel. Wisch Decl., Exh. 10. Plaintiff argues that this opinion is advisory only and is not binding. MPA, pg. 8, lines 22-23. This is correct, it is only an advisory opinion and this Court is free to follow or not follow it. In this instance, the Court finds this opinion to be sufficiently persuasive. This advisory opinion is also consistent with this Court's prior discussion and ruling on the June 26, 2026 Motion to Enforce Turnover Order and Compel Disgorgement of Funds by Sweeney Mason, LLP, which was likewise denied. The funds were from third party payors, who declined Defendant's request to have funds disbursed to him, and instead directed CALG to return the funds to said third party payors which it did. Feuer Decl., ¶¶ 6-8. There is no impropriety here.

As such, Plaintiff's Motion to Enforce Turnover Order is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.